

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1861

By: Roberts

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1031, as last amended by Section 2, Chapter 267, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1031), which relates to the Oklahoma Law on Obscenity and Child Pornography; providing statutory reference for prostitution-related offense; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1031, as last amended by Section 2, Chapter 267, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1031), is amended to read as follows:

Section 1031. A. Except as provided in subsection B, C, D, or E of this section, any person violating any of the provisions of paragraph 1, 2, 3, or 5 of subsection A of Section 1029 or Section 1030 of this title shall, upon conviction, be guilty of a misdemeanor and shall be punished by imprisonment in the county jail for not less than thirty (30) days nor more than one (1) year or by fines as follows: a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00) upon the first conviction for violation of any

1 of such provisions, a fine not more than Five Thousand Dollars
2 (\$5,000.00) upon the second conviction for violation of any of such
3 provisions, and a fine not more than Seven Thousand Five Hundred
4 Dollars (\$7,500.00) upon the third or subsequent convictions for
5 violation of any of such provisions, or by both such imprisonment
6 and fine. In addition, the court may require a term of community
7 service not less than forty (40) nor more than eighty (80) hours.
8 The court in which any such conviction is had shall notify the
9 county superintendent of public health of such conviction.

10 B. Any person who engages in an act of prostitution with
11 knowledge that he or she is infected with the human immunodeficiency
12 virus shall, upon conviction, be guilty of a felony punishable by
13 imprisonment in the custody of the Department of Corrections for not
14 more than five (5) years.

15 C. Any person who engages in an act of child prostitution as
16 defined in Section 1030 of this title shall, upon conviction, be
17 guilty of a felony punishable by imprisonment in the custody of the
18 Department of Corrections for not more than ten (10) years and by
19 fines as follows: a fine not more than Five Thousand Dollars
20 (\$5,000.00) upon the first conviction, a fine not more than Ten
21 Thousand Dollars (\$10,000.00) upon the second conviction, and a fine
22 not more than Fifteen Thousand Dollars (\$15,000.00) upon the third
23 or subsequent convictions.

1 D. Any person violating any of the provisions of Section 1029
2 or 1030 of this title within one thousand (1,000) feet of a school
3 or church shall, upon conviction, be guilty of a felony and shall be
4 punished by imprisonment in the custody of the Department of
5 Corrections for not more than five (5) years or by fines as follows:
6 a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00)
7 upon the first conviction for violation of any of such provisions, a
8 fine not more than Five Thousand Dollars (\$5,000.00) upon the second
9 conviction for violation of any of such provisions, and a fine not
10 more than Seven Thousand Five Hundred Dollars (\$7,500.00) upon the
11 third or subsequent convictions for violation of any of such
12 provisions, or by both such imprisonment and fine. In addition, the
13 court may require a term of community service not less than forty
14 (40) nor more than eighty (80) hours. The court in which any such
15 conviction is had shall notify the county superintendent of public
16 health of such conviction.

17 E. Any person violating paragraph 4 of subsection A of Section
18 1029 of this title shall, upon conviction, be guilty of a felony and
19 shall be punished in accordance with the provisions of paragraph 1,
20 2, and 4 of subsection B of Section 1040.57 of this title.

21 SECTION 2. This act shall become effective November 1, 2025.

22
23 60-1-11703 GRS 12/31/24
24